

DISSENTING OPINION BY M. ANZILOTTI.

[*Translation.*]

Though I have reached the same conclusion as that at which the Court has arrived, I find myself unable to subscribe to the reasons on which the Order is based.

I wish to state in the first place that, speaking generally, if there was ever a case in which the application of Article 41 of the Statute would be in every way appropriate, it would certainly be so in the case before us. The German Government alleges that certain acts of expropriation, which have been, or are being carried out, involve discriminatory treatment of Polish citizens of German race, as compared with Polish citizens of Polish race and, hence, that on this ground these acts are contrary to the Treaty of June 28th, 1919: founding itself on this reason, it asks that the expropriations now in progress should be suspended, as an interim measure of protection, until the Court has finally decided whether the said expropriations are legal or illegal. If the *summaria cognitio*, which is characteristic of a procedure of this kind, enabled us to take into account the *possibility* of the right claimed by the German Government, and the *possibility* of the danger to which that right was exposed, I should find it difficult to imagine any request for the indication of interim measures more just, more opportune or more appropriate than the one which we are considering.

Apart from all questions relating to the interpretation of Article 12 of the Treaty of June 28th, 1919, for the protection of Minorities, the only reason which, in my view, made it impossible for the Court to grant the German Government's request, in the present state of the proceedings, was the uncertainty which the Application instituting the main proceedings allows to subsist as to what the said Government seeks to obtain from the Court, and, in consequence, as to the extent of any rights which the interim measures would have to protect.

In the opinion of the Court, the proceedings instituted by the German Government were designed to obtain a declaration that certain alleged infractions of the Treaty had been committed in individual cases, in applying the agrarian reform law, and, further, to obtain reparation for the said infractions; such is indeed the impression conveyed—at any rate, at first sight—by the wording used in the Application to indicate the object of the claim: “to declare that violations of the Treaty of June 28th, 1919, have been committed to the detriment of Polish nationals of German race, and to order reparation to be made”. If that is really so, it is manifest that the interim measures

applied for would go far beyond the limits of the right that is in dispute. Interim measures of protection would certainly have been possible and expedient; but they would need to have been confined to the individual cases which the German Government had in mind. And since neither the Application, nor the request for the indication of interim measures, made it possible to ascertain which were these cases, the Court found itself unable, in practice, to indicate the measures as requested.

But was that really the meaning of the German Application? Was not its intention rather to obtain from the Court a declaratory judgment, to the effect that the Polish Government's conduct in the application of the agrarian reform law was not consistent with its obligations under the Treaty of June 28th, 1919? In other words, the issue is not—or is not only—this or that violation of the Treaty committed to the detriment of this or of that Polish citizen of German race; the issue is the whole body of acts by which the Polish authorities have applied the agrarian reform law; and it is the inconsistency of the attitude, resulting from this whole body of acts, with the Treaty of June 28th, 1919, that the Court is asked to declare. If such was the object of the claim in the German Government's Application, it is quite comprehensible that it should have asked—as an interim measure of protection—that the application of the agrarian reform to Polish citizens of German race, in general, should be suspended.

I am inclined to think that that is really the meaning of the Application; more especially, because it would seem incomprehensible that the Court should be asked to declare that violations of a treaty had been committed, without the violations being specified: such an application would moreover be null and void, owing to the complete absence of certainty as to the object of the claim.

But I must admit that the German Government's Application is open to different interpretations, and this in regard to a point on which perfect clarity is essential. As it is only fair that a government should bear the consequences of the wording of a document for which it is responsible, I could readily understand that the Court should, on that ground, refuse to grant the request for interim measures of protection. This, however, should not prejudice the German Government's right to submit a fresh application indicating the subject of the suit with the necessary clearness and precisions, and to follow it up by a fresh request for the indication of interim measures appropriate to the rights claimed.

(Signed) D. ANZILOTTI.